

STRATEGY FOR THE BALKAN CONFLICT

Introduction: As we seek to manage the immediate crises in Bosnia and Croatia, we must develop a strategy that can lead to a resolution of the Balkan Conflict, one that is consistent with vital U.S. interests: maintaining our strategic relationship with key Allies and protecting the credibility of NATO; avoiding a conflict with Russia that could undermine efforts to promote reform and international cooperation; preventing the spread of the Bosnian conflict into a wider Balkan war that could destabilize southeastern Europe and draw in U.S. allies; and ensuring that the forcible changing of borders and acts of genocide do not become legitimate forms of behavior in post-Cold War Europe.

Our basic goal should be the preservation of viable Bosnia-Herzegovina along lines that are broadly consistent with the principles and goals of the Contact Group plan -- i.e., preserving Bosnia as a single state and providing roughly half the territory to the Bosniac-Croat Federation and half to the Bosnian Serbs. While the geographic division will need to be on a more realistic basis than the Contact Group map, reflecting the new realities on the ground, any significant retreat from the 50/50 principle would be tantamount to ratifying aggression and undermine U.S. leadership. It would, in any case, be futile to attempt to impose a solution based on the status quo on the Bosnian Government, since it would lead to an unenforceable settlement and a revanchist Bosnian state.

There are two ways in which we can achieve this goal:

- To achieve a political settlement in Bosnia this year, based on new territorial trade-offs within the framework of the Contact Group plan; or
- To put in place a strategy that can carry us through the next 18 months, including the likely withdrawal of UNPROFOR, and lay the basis for the Bosnians to reestablish a balance of power on the ground, one that could lead ultimately to a durable political settlement consistent with U.S. interests.

Our present course provides little assurance of achieving either of these results. Even if our current efforts to strengthen UNPROFOR and reassert NATO air power are successful, they will provide at best a temporary respite. By next spring, if not sooner, we are likely to see a renewed escalation of hostilities and renewed pressure to withdraw UNPROFOR just as the U.S. election campaign moves into high gear. The increased likelihood of a new war in the Krajina only adds to the precariousness of the current situation and the dangers of a wider conflict.

Therefore, in the coming weeks, we should make an all-out effort to obtain a realistic diplomatic settlement, capitalizing on the new leverage provided by the London decisions and the parties' (and the Allies') new anxieties about developments on the battlefield. If this effort fails, we should let UNPROFOR collapse this year, face up to our extraction obligations now and move to help the Bosnians obtain the capabilities needed to establish a balance of power on the ground and to gain control of the main territories allotted to them under the Contact Group proposal. This would be underpinned during a post-withdrawal transition period by enforcement of the no-fly zone and air strikes to protect Sarajevo and the other safe areas, possibly reinforced by a non-U.S. UNPROFOR successor force or paramilitary volunteers.

We would make clear up front, as a quid pro quo, to the Bosnians that our willingness to stay engaged and support them in this fashion would be dependent on their showing demonstrable flexibility and realism during the negotiating effort. At the same time, we would make known to the

Bosnian Serbs what they will face following UNPROFOR withdrawal in order to encourage them to make the concessions needed to achieve a settlement.

PRESSING FOR A POLITICAL SETTLEMENT THIS YEAR

The loss of Srebrenica and Zepa may open the way to Bosnian Government acceptance of more realistic territorial solutions and constitutional arrangements, ones that modify the Contact Group plan while preserving its core principles (single state; territorial solution close, but not strictly limited, to 51/49; and sufficient autonomy for the Serb and Muslim/Croat entities, as well as links to neighboring states, that enable them to co-exist peacefully and avoid a slide back to war). The Bosnian Serbs may want to negotiate before their military position erodes and have put out signals suggesting a willingness to compromise on terms compatible with the Contact Group framework. (See Annex I for a more detailed description of the elements of a modified Contact Group plan.)

Getting to Negotiations: The Intelligence Community has judged it unlikely that either the Bosnian Government or the Bosnian Serbs are genuinely interested in negotiating a peace settlement in the near term. Developments over the past two weeks, however, may have altered the parties' calculations: the Bosnian Serbs may have been sobered by the RRF, the NATO air strike decisions, and, above all, by the Croats' successful intervention in the Livno valley, which has exposed how thinly spread their forces are; Milosevic has to be worried about the impending new war in Krajina and the risk that intensified fighting could destroy his chances of obtaining sanctions relief before another winter sets in; even the Bosnian Government -- while emboldened by these recent developments -- has doubts about the staying power of NATO's new resolve and is uncertain about its prospects on the battlefield (as well as managing the humanitarian consequences) if UNPROFOR leaves and the arms embargo is finally lifted.

To succeed, the new diplomatic effort will require that the U.S. reassume leadership of the process as we did in early 1994 when we brokered the Federation agreement and put together the Contact Group map. Getting the parties to the table will require finessing the issue of Bosnian Serb "acceptance" of the Contact Group plan "as the starting point" and breaking our self-imposed ban on contacts with Pale. We should pursue several tracks to achieve an early resumption of negotiations:

- Begin with **consultations with key Allies and the Russians** in which we signal a willingness to work on a modified Contact Group plan and to reopen contacts with Pale. The Allies will be enthusiastic about this proposal, and it will also take the sting out of our less-than-ringing endorsement of the current Bildt package on mutual recognition and sanctions relief. (Bildt is only too willing to see the Americans step back into the breach.)
- Continue to explore whether we can **broaden the negotiations with Milosevic** (both through Carl Bildt and renewed U.S. engagement) to secure early Bosnian Serb agreement to a cessation of hostilities and initiation of negotiations using the Contact Group plan as basis or starting point.
- Begin a **discreet bilateral dialogue with the Bosnian Government** to encourage new flexibility on the map, the constitutional issues and the semantics of Serb "acceptance" in the run-up to negotiations, making clear that our willingness to support a robust post-UNPROFOR-withdrawal strategy will be dependent on such flexibility.
- Send a **secret envoy for talks with Pale leaders** (e.g., Chuck Redman, Bob Frasure or Bill Richardson, with talks taking place in Belgrade on the margins of U.S. talks with Milosevic) -- preferably with the Bosnians' approval or acquiescence -- to find a formula for negotiations that

finesses the issue of "acceptance," and to explore territorial trade-offs and constitutional arrangements that would gain their agreement to the Contact Group framework.

Negotiating the terms of a settlement: U.S. mediation and behind-the-scenes diplomacy with the two sides will remain key once formal negotiations begin, even though we will need to maintain some role for our Contact Group partners. Shuttle diplomacy between Pale and Sarajevo will probably be the best approach, with a Summit or international conference at the end of the process.

Shoring up the Croatian flank: In light of recent events, we will need to take the initiative to contain the danger that war in Croatia will escalate to a region-wide conflict that could derail any new diplomatic effort in Bosnia. Our aim should be to cut short Tudjman's assault on the Krajina at the best moment. To that end, we should capitalize on the Croatians' new military leverage by pressing the Krajina Serbs to agree to immediate implementation of confidence-building measures and negotiations aimed at full political integration in Croatia on the basis of autonomy for Serb-majority areas. The CBMs could include secure rail access to the Dalmatian coast, opening of the Adriatic pipeline and removal of artillery and missiles from within range of Zagreb and the coast. We would offer to play a leading role in mediating the settlement as part of the Z-4 process (the Z-4 plan will have to be discarded since Tudjman, in his new position of strength, will not agree to the "state within a state" for the Krajina that it would establish).

SUPPORTING BOSNIA'S SURVIVAL POST-UNPROFOR

If the last-ditch effort to establish a viable Bosnian state through negotiations fails and/or we fail to restabilize the situation on the ground, we should seek UNPROFOR's withdrawal and implement a post-withdrawal strategy aimed at ensuring Bosnia's survival by establishing a balance of power on the ground. (It is our judgment that it would be better to deal with the challenge of implementing OPLAN 40104 this year, rather than having to carry out a messy and protracted NATO withdrawal operation in the middle of the election campaign, when the parties will have an even greater incentive to embarrass us or try to draw us into the conflict.) Implementation of our new strategy would, as noted above, be contingent on the Bosnian Government having shown flexibility in the negotiations.

Leveling the playing field: Our post-withdrawal strategy should have as its goal providing the Bosnians with sufficient military capability to survive the immediate Serb onslaught, to consolidate their authority over Sarajevo and Central Bosnia and, within a short period of time, to have the potential to regain most of the territory allotted to them under the Contact Group proposal. We would make clear that our support would end if they set more ambitious war aims (e.g., if they sought to retake territory that would jeopardize achieving a settlement consistent with our modified Contact Group proposal). This would make the ultimate resolution of the conflict the result of a balance of power on the ground rather than dependent on the actions of the international community.

- **Our preferred approach would be to lift the arms embargo multilaterally through passage of a UNSC resolution**, perhaps making it part of the same resolution that terminates UNPROFOR's mandate and authorizes withdrawal. Some of our allies have indicated they will go along with lift after UNPROFOR withdrawal. To secure a Russian abstention, we would, at a minimum, need to make lift applicable to all republics of the former Yugoslavia (including Serbia-Montenegro), and we might need to accept more sanctions relief for Belgrade as well.
- **If the Russians threatened to veto, we would undertake covert provision of arms to the Bosnians**, either directly or through third countries, without formally asserting the right to arm them in violation of UNSC resolutions -- thereby minimizing the damage to UNSC sanctions

regimes against Iraq, Libya and other pariah states. (An alternative would be to seek Allied agreement to a joint declaration that, with the termination of the UN's role in Bosnia, we were no longer bound by the arms embargo; this "NATO unilateral lift," however, could provoke a serious rift with Moscow and undermine other sanctions regimes.)

Additional Support during the Transition: Although the Bosnians are stronger now than when we first pushed lift-and-strike in 1993, until they acquire and assimilate new arms, they will still need additional support to survive the Serbs' preemptive offensives. At a minimum, we will need to help the Bosnians ensure the survival of Sarajevo as the linchpin of a future Bosnian state. Therefore, for a transition period of roughly one year, we would:

- Press our NATO Allies to **continue enforcing the no-fly zone**, to deprive the Serbs of air superiority (this would, of course, require preemptive SEAD); as a fallback, we would enforce the NFZ unilaterally or through a coalition of the willing; and
- After proper warning, **conduct aggressive air strikes against a broad range of Bosnian Serb military targets to protect Sarajevo (and possibly the other remaining safe areas) against Serb artillery attacks.** This would preferably be done through NATO or if our allies refused to renew the NATO mandate post-UNPROFOR, through a U.S.-led coalition of the willing. The air strikes would be based on new UNSC authority (since existing authority under 836 and 844 is tied to UNPROFOR) or as a fallback, on a Bosnian Government request for collective self-defense. Forward air controllers would be provided by countries prepared to deploy forces in Bosnia after UNPROFOR withdrawal (e.g., Turkey, Jordan or Egypt), since we would want to avoid assigning this function to the Bosnian Government. We would limit the commitment to Sarajevo and possibly the other safe areas to avoid becoming full-scale combatants; in any case, Bosnian ground forces, with HVO cooperation, can hold their own in Central Bosnia.
- Encourage members of UNPROFOR to remain, and other countries to volunteer, as members of a **successor force to UNPROFOR**, although we would not formally organize or lead a coalition of the willing. The mission of the force (which would most likely be comprised of moderate Islamic states) would be to help protect Sarajevo and the other safe areas and/or to continue to promote stability in Federation-controlled areas of Central Bosnia. One essential function, as noted above, would be to serve as forward air controllers. The force might be deployed openly under a Chapter VII UN mandate with the explicit mission of supporting Bosnia against Serb aggression; alternatively, it could deploy at the request of the Bosnian Government, invoking Article 51 of the UN Charter; a third option would be for the volunteer forces to deploy semi-covertly. The Bosnians would need to agree, however, as a condition for our military support, that pariah states like Iran and Libya not be permitted to deploy troops on the ground. (The humiliating prospect of Islamic countries taking the place of European countries in solving a European problem could prompt some of our Allies to stay and participate in a successor force or to perform the specific function of forward air controllers.)

We would set a **limit on the NFZ and air strike commitments** (e.g., one year -- until the end of 1996 -- or some event-driven deadline), making clear to the Bosnians that once we have made a reasonable effort to level the playing field, they are on their own. In addition to providing arms and training to reinforce the Bosnians' ground force capabilities, we would ensure they obtained effective air defenses to counter Serb air capabilities when the NFZ lapsed. Whether our own assistance were overt or covert, we would mobilize a multinational effort to arm and train the Bosnians, so as to spread the burden and reduce the overall U.S. role.

Keeping Belgrade Out: Leveling the playing field becomes a much more formidable challenge if Belgrade intervenes on a large scale in support the Bosnian Serbs. We would offer **substantial sanctions relief to induce Milosevic to stay out, fully seal the border and accept a much larger international monitoring force.** We would at the same time **warn Milosevic that if we detect significant Serbian military support, we will use air power** against Serbian forces operating inside Bosnia and against the Drina bridges and other supply routes and that we do **not rule out strikes against military targets inside Serbia.**

Regional containment strategy: As we moved to arm the Bosnians, we would need to take a range of steps to prevent a widening of the conflict to other parts of the region, to include:

- Reinforcing UNPREDEP in Macedonia to deter Serbian border encroachments and a new crackdown in Kosovo, together with a reaffirmation of our warnings to Milosevic regarding air strikes against Serbia in the event he provokes armed conflict in Kosovo;
- Pressing to bring an early end to the Croatian assault on the Krajina and to negotiate the peaceful reintegration of Serb areas under Croatian sovereignty; and
- Possibly deploying preventive peacekeeping forces along Hungary's and Albania's borders with the FRY.

We would, at the same time, intensify our efforts to **sustain the Federation and Bosnian-Croat military cooperation.** And we would make clear that we stand ready to **broker a political settlement and assist in its implementation,** although at this stage we might would jettison the Contact Group approach and devise a new basis for the negotiations.

Getting from Here to There: We should begin intense private discussions with our key Allies *now* on our post-withdrawal strategy in order to bolster their resolve to strengthen UNPROFOR in the short term, to force them to face up to their responsibility to help support Bosnia's survival if withdrawal must occur and, if possible, to gain their cooperation. This will also be essential to determining whether we will be able to carry out the air operation through NATO (using Italian bases) or whether we will need to make alternative arrangements (e.g., upgrade bases in Croatia or other neighboring countries). We should also lay out our strategy for the Bosnians to gain their flexibility in the negotiations, as noted above, and to encourage them to rein in their supporters on Capitol Hill. We would emphasize that a strong post-UNPROFOR commitment will give us leverage to pursue a settlement.

Although it would be desirable to use the withdrawal period to begin laying the groundwork for post-UNPROFOR support, our overriding consideration must be the safety of U.S., NATO and UN troops. Therefore, we would have to abide by the NATO OPLAN's principle of neutrality during withdrawal, using force primarily in self-defense and refraining from seeking to enhance the Bosnians' military position. We would, however, seek to shorten the duration of the withdrawal operation in order to minimize the exposure of our troops to Serb attacks. Moreover, we would seek Allied agreement to continue to enforce UNSC resolutions and NATO mandates during the withdrawal, in order to reduce the Serbs' ability to threaten the safe areas and permit the use of close air support against Serb forces interfering with the withdrawal. (We might even use implementation of 40104 to establish more secure control over Sarajevo for the Bosnians after NATO leaves.) The Bosnian Government's awareness of the support we intend to provide after withdrawal should help minimize the chances that government troops or Bosnian civilians would impede UNPROFOR's departure.

Attachment: Modified Contact Group Plan

Outline of a Modified Contact Group Plan

- In renewed peace talks or exploratory contacts with the parties, we would float **possible modifications to the Contact Group map**. These would preserve the 51:49 ratio but provide for a more compact and cohesive territory for the Federation (e.g., trading Srebrenica, Zepa and Gorazde, plus a widening of the Posavina corridor for full Federation control over Sarajevo and additional territory in central Bosnia). Consistent with a Silajdzic proposal to Juppé, we could state that up to 10 percent of the Contact Group map was subject to renegotiation. Ultimately, we should be prepared to **encourage the Bosnians to consider accepting somewhat less than 51%** if they can obtain higher-quality territory and more defensible Federation frontiers in Central Bosnia.
- We would, similarly, **develop the Contact Group's proposed constitutional principles** to show the Serbs the amount of autonomy their republic would have within the Union and the scope of the "parallel special relationship" with Serbia.
- A more controversial proposal would be to encourage the Bosnians to agree that the Serbs can conduct a **referendum on secession after 2-3 years**. The Bosnians agreed to this in the 1993 *Invincible* package but subsequently backed away; endorsing a secession right could be viewed as accepting the eventual establishment of a Greater Serbia. Nevertheless, the case could be made that if the Bosnians cannot, after 2-3 years, persuade the Serb population that their best future lies in reintegration, there is no point in blocking the *peaceful* separation of the Union along the lines of the Czechoslovak model.
- We would propose to the Allies and Russians mutual participation in funding a **post-settlement "mini-Marshall Plan" for the Balkans, including the prospect of EU association agreements**. This would serve to encourage reconstruction and reestablishment of economic ties within the new Bosnian Union, foster regional economic cooperation that satisfy Bosnian Serb desires for links to Serbia and thereby give all parties a stake in peace.
- We could promote the development of **Balkan economic union or confederation** uniting all the interested states of the former Yugoslavia in a customs union or single market, with the possibility of establishing regional political bodies further down the road. This would offer an additional means for promoting regional economic cooperation and dampening Serb nationalists' insistence that all Serbs must live in one state.

In tandem with these steps, we and our Contact Group partners would tell Milosevic that:

- We will terminate the current sanctions relief if he has not recognized Bosnia and taken visible action to terminate military support for Pale (and Knin) and to secure concrete action to de-escalate Bosnian Serb attacks on the safe areas;
- Moreover, if sanctions relief is terminated and the ICFY mission departs, any resumption of large-scale support for Pale will be met not only by a tightening of economic sanctions against the FRY but by U.S. or NATO air strikes against the Drina bridges and key supply routes.
- At the same time, in conjunction with the threat of terminating sanctions relief for non-compliance, we would **increase the rewards offered to Milosevic for initial positive steps**, such as suspending all non-strategic trade sanctions if he recognizes Bosnia, really seals the border and delivers Bosnian Serb de-escalation actions or perhaps lifting vice suspending a few of the phase-one sanctions.

Clinton Presidential Records Mandatory Declassification Review

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Documents from this Mandatory Declassification Review were released in full.
